

*Doran*, 439 U. S. 282, 286 (1978). Its mandatory language furthers its intended purposes: "to enable each state to bring offenders to trial as swiftly as possible in the state where the alleged offense was committed," and "to preclude any state from becoming a sanctuary for fugitives from justice of another state." *Id.*, at 287; see *Biddinger v. Commissioner of Police*, 245 U. S. 128, 132-133 (1917); *Appleyard v. Massachusetts*, 203 U. S. 222, 227 (1906). The Framers of the Constitution perceived that the frustration of these objectives would create a serious impediment to national unity, and the Extradition Clause responds to that perception. "It would have been far better to omit it altogether, and to have left it to the comity of the States, and their own sense of their respective interests, than to have inserted it as conferring a right, and yet defining that right so loosely as to make it a never-failing subject of dispute and ill-will." *Kentucky v. Dennison*, 24 How., at 102. We reaffirm the conclusion that the commands of the Extradition Clause are mandatory, and afford no discretion to the executive officers or courts of the asylum State. See *California v. Superior Court of California*, 482 U. S. 400, 405-406 (1987).

The second, and dispositive, holding of *Kentucky v. Dennison* rests upon a foundation with which time and the currents of constitutional change have dealt much less favorably. If it seemed clear to the Court in 1861, facing the looming shadow of a Civil War, that "the Federal Government, under the Constitution, has no power to impose on a State officer, as such, any duty whatever, and compel him to perform it," 24 How., at 107, basic constitutional principles now point as clearly the other way. Within 15 years of the decision in *Dennison* it was said that "when a plain official duty, requiring no exercise of discretion, is to be performed, and performance is refused, any person who will sustain personal injury by such refusal may have a *mandamus* to compel its performance," and it was no objection that such an order might be sought in the federal courts against a state officer. *Board of Liquidation v. McComb*, 92 U. S. 531, 541 (1876).